

Court No. - 37

Case :- WRIT - C No. - 39041 of 2017

Petitioner :- Chandrabhan Gupta

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Bipin Kumar

Counsel for Respondent :- C.S.C.,Mahboob Ahmad

Hon'ble Amreshwar Pratap Sahi,J.

Hon'ble Rajiv Lochan Mehrotra,J.

Heard learned counsel for the petitioner.

The petitioner is raising a billing dispute in relation to consumption of electricity charges.

Learned counsel for the respondent/Electricity Department submits that the billing dispute can be raised effectively and can be decided expeditiously by the Executive Engineer concerned in terms of the Clause 6.5 of the U.P. Electricity Supply Code, 2005. Apart from this if the petitioner is found liable to make any payments he can also make a request to the Executive Engineer for fixings easy installments in terms of Clause 6.14 of the said Code. In view this and in view of the statement of fact made in paragraph no.12 of the writ petition that the petitioner has already approached the respondent no.4 for this purpose, we dispose off this writ petition with liberty to the petitioner to file a certified copy of this order before the respondent no.4 who shall after receipt of the same dispose off the representation/application of the petitioner within six weeks thereafter.

Copy of this order be given to the learned counsel for the parties on payment of usual charges today.

Order Date :- 29.8.2017

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